COURSE OUTLINE



JUST2202

Criminal Law in Canada
Fall 2020 - Fall 2020

Last Updated: 8/12/2020 12:21:59 PM

Care has been taken to obtain copyright permission to reproduce this material. Any information that will enable Bow Valley College to obtain copyright clearance for any material not acknowledged would gladly be received by:

Bow Valley College
345 6th Avenue SE
Calgary AB T2G 4V1
Attn: Copyright Officer
email: copyright@bowvalleycollege.ca

© Bow Valley College

JUST2202 Criminal Law in Canada

COURSE DESCRIPTION

This course involves a brief look at the evolution of criminal law and the history and structure of the Criminal Code. An examination of basic constitutional law, including the Canadian Charter of Rights and Freedoms, provides the student with an understanding of some limitations in criminal procedures. Emphasis is placed on gaining a great deal of familiarity with the Criminal Code as stature law, including interpretation, understanding, and applicability of much of the criminal procedural requirements contained therein.

REQUISITES	None
EQUIVALENTS	Completed at least 1 of the following: • LEGL160 - Criminal Law in Canada (3)
CREDITS	3
HOURS	45
ELIGIBLE FOR PLAR	No

COURSE LEARNING OUTCOMES

Bow Valley College is committed to ensuring our graduates can demonstrate their abilities in key areas that will make them effective citizens and encourage their development as lifelong learners. In addition to the discipline-specific skills that learners acquire in their programs, the College has identified ten learning outcomes.

College-Wide Outcomes:

1. Communication
2. Thinking Skills
3. Numeracy and Financial Literacy
4. Working with Others
5. Digital Literacy
6. Positive Attitudes and Behaviours
7. Continuous Learning
8. Health and Wellness Awareness
9. Citizenship and Intercultural Competence
10. Environmental Sustainability

#	COURSE LEARNING OUTCOME(S)	COLLEGE WIDE OUTCOMES SUPPORTED
1	Describe and distinguish between the sources of Canadian Law.	1, 2, 6, 9
2	Distinguish between civil and criminal law.	1, 2, 7, 9
3	Discuss legal rights protected by the Charter of Rights and Freedoms.	1, 2, 6, 9
4	Explain the procedural and substantive law used in the criminal system.	1, 2, 3, 4, 5, 7
5	Summarize the important legal concepts related to corrections, youth justice, and Indigenous populations.	1, 2, 4, 6, 7, 8, 9

COURSE MODULES AND SCHEDULE

**Course schedule subject to change, depending on delivery mode and term of study. For exact dates, please consult the Course Offering Information in Brightspace.*

WEEK/HOURS	MODULES
Week 1	Overview of the course, expectations and policy Module 1 Chapter 1: Introduction
Week 2	Module 1 Chapter 2: Statute Law: Function, Jurisdiction, and Structure Chapter 3: Common Law and the Concept of Legal Precedent Module 1 Discussion due
Week 3	Module 2 Chapter 10: Contracts and Torts: The Founding Principles of Civil Law Quiz 1 is due
Week 4	Module 2 Chapter 11: Property, Family Property, and Tenancies" The "Rights To" Disciplines
Week 5	Module 2 Chapter 12: Family and Employment Law: The "Relationship" Disciplines. Criminal Justice employment law Provincial Police Acts and RCMP Act Module 2 Discussion due
Week 6	Module 3 Chapter 4: The Canadian Charter of Rights and Freedoms: Introduction and Selected Provisions Module 3 Discussion due
Week 7	Reading week
Week 8	Mid-term Exam Assignment 1 due
Week 9	Module 4 Chapter 5: The Criminal Code and the Structure of Criminal Offences Introduce Assignment 2
Week 10	Module 4 Chapter 6: Investigation of Crime, Police Powers, and the Canadian Charter of Rights and Freedoms
Week 11	Module 4 Chapter 7: Criminal Pre-trial Issues Chapter 8: Criminal Trial Issues and Defences
Week 12	Module 4 Chapter 8: Defences Chapter 9: Criminal Offence Sentencing Quiz 2 due
Week 13	Module 5 Correctional Law Overview Introduction to youth focused law Learning Activity 4 due
Week 14	Module 5 Indigenous law and related concepts Assignment 2 due
Week 15	Final exam

ASSESSMENT

COURSE LEARNING OUTCOME(S)	ASSESSMENT	WEIGHT
1, 2, 3, 4, 5	Assignments	30%
1, 2, 3, 4, 5	Learning activities	20%
1, 2, 3, 4, 5	Exams	50%

Important: For details on each assignment and exam, please see the Course Offering Information.

PERFORMANCE STANDARDS

A minimum grade of D is required to pass this course. However, a program may require a higher grade in this course to progress in the program or to meet specific program completion requirements.

Please consult with the program area or contact the program chair for further details. A minimum Grade Point Average of 2.0 is required for graduation.

GRADING SCHEME

Grade	Percentage	Grade Point	Description
A+	95-100	4.0	Exceptional: superior knowledge of subject matter
A	90-94	4.0	Excellent: outstanding knowledge of subject matter
A-	85-89	3.67	
B+	80-84	3.33	
B	75-79	3.0	Very Good: knowledge of subject matter generally mastered
B-	70-74	2.67	
C+	67-69	2.33	
C	64-66	2.0	Satisfactory/Acceptable: knowledge of subject matter adequately mastered
C-	60-63	1.67	
D+	57-59	1.33	
D	50-56	1.0	Minimal Pass
F	Less than 50	0.0	Fail: an unsatisfactory performance

REQUIRED LEARNING RESOURCES

Hoag, V., Mukherji, G., & Rock, N. (2017). *Foundations of criminal and civil law in Canada* (4th ed.). Toronto, Canada: Emond. (or current edition)

Rodrigues, G. (2017). Pocket criminal code 2018. Toronto, Canada: Carswell. (or current edition)

Additional learning resources may be found in the Course Offering Information or in Brightspace.

Additional learning resources may be found in the Course Offering Information or in Brightspace.

ADDITIONAL INFORMATION

Additional information may be found in the Course Offering Information or in Brightspace.

ACADEMIC ACCOMMODATIONS

Learners with a disability (learning, physical, and/or mental health) may qualify for academic and exam accommodations. For more information, or to apply for accommodations, learners should make an appointment with Accessibility Services in the Learner Success Services (LSS) Department. Accessibility Services can also assist learners who may be struggling with learning but do not have a formal diagnosis. To make an appointment visit LSS on the first floor of the south campus or call 403-410-1440. It is the learner's responsibility to contact Accessibility Services and request academic accommodations. For more information, please visit our website at http://www.bowvalleycollege.ca/accessibility.

INSTITUTIONAL POLICIES

Bow Valley College is committed to the highest standards of academic integrity and honesty. Learners are urged to become familiar with and uphold the following policies: Academic Honesty (500-1-7), Learner Code of Conduct, Procedures and Guidelines (500-1-1), Learner Appeals (500-1-12), Attendance (500-1-10), Grading (500-1-6), Academic Continuance and Graduation (500-1-5), and Electronic Communications (300-2-13). Audio or video recording of lectures, labs, seminars, or any other teaching and learning environment by learners is allowed only with consent of the instructor as part of an approved accommodation plan. Recorded material is to be used solely for personal study and is not being used or distributed without prior written consent from the instructor.

Turnitin:

Students may be required to submit their course work to Turnitin, a third-party service provider engaged by BVC. Turnitin identifies plagiarism by checking databases of electronic books and articles, archived webpages, and previously submitted student papers. Students acknowledge that any course work or essays submitted to Turnitin will be included as source documents in the Turnitin.com reference database, where it will be used solely to detect plagiarism. The terms that apply to a student's use of Turnitin are described on Turnitin.com.

Online Exam Proctoring:

Examinations for this course may require proctoring through an online proctoring service. Online proctoring enables online exam taking within a controlled and monitored environment, thereby enhancing academic integrity. Online proctoring may occur through a variety of methods, including but not limited to:

a. live online proctoring where a remote invigilator authenticates identity and observes completion of an exam using specialized software and recordings;
b. automated proctoring where the exam session is recorded and AI (artificial intelligence) analyzed;
c. browser lockdown that limits access to other applications, websites, copying, printing, screen capture and other functions; or
d. a combination of both live/automated proctoring and browser lockdown.

Course instructors will review recordings, analyses, and data obtained through online proctoring for academic integrity infractions. It is the student's responsibility to meet the technical, software, location, and identity verification requirements necessary to enable online proctoring.

Further details of these policies are available in the Academic Calendar and on the Bow Valley College website, bowvalleycollege.ca.

Learners are encouraged to keep a copy of this course outline for future reference.